

FEDERAL MARITIME COMMISSION

DOCKET NO. 23-08

**MEDITERRANEAN SHIPPING COMPANY, S.A. – POSSIBLE VIOLATIONS OF THE
SHIPPING ACT, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A)**

**MSC MEDITERRANEAN SHIPPING
COMPANY, S.A.’S NOTICE OF INTENT TO
ENFORCE SUBPOENAS**

Pursuant to 46 U.S.C. §41308(a) and 46 C.F.R. §502.150(c), Respondent MSC Mediterranean Shipping Company, S.A. (“MSC”), through counsel, hereby provides the Federal Maritime Commission with notice of its intent to enforce subpoenas issued in the above-captioned proceeding.

At the request of MSC, the Presiding Officer in this proceeding issued subpoenas to, among others, V. Alexander & Co., Inc. (“V. Alexander”) and John S. Connor, Inc. (“John S. Connor”). Those duly issued subpoenas were served on V. Alexander on October 16 and on John S. Connor on October 6. The response dates for those subpoenas were November 5 and October 26, respectively. However, no response has been received from either V. Alexander or John S. Connor.

Accordingly, pursuant to the relevant provisions of the U.S. Shipping Act of 1984, as amended, and the regulations of the Federal Maritime Commission, MSC will seek enforcement

of those subpoenas in federal district court not sooner than five (5) days from the date of this notice.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is fluid and cursive, with the first name "Wayne" and last name "Rohde" clearly distinguishable.

Wayne R. Rohde
Kathryn Sobotta
Rachel Schwartz
COZEN O'CONNOR
1200 19th Street, NW
Washington, DC 20036
(202) 463-2507
wrohde@cozen.com
ksobotta@cozen.com
rschwartz@cozen.com

November 6, 2023

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Notice was served upon the following via electronic mail on this 6th day of November, 2023.

Julie Berestov, Esq. (jberestov@fmc.gov)

Thereon Korsak, Esq. (tkorsak@fmc.gov)

Serena Tang, Esq. (stang@fmc.gov)

A handwritten signature in black ink, appearing to read "Wayne Rohde", written in a cursive style.

Wayne Rohde